

BEFORE THE STATE BOARDS OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS AND ADDICTION
COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2020-613 and 2020-610

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A
LICENSED PROFESSIONAL COUNSELOR AND CERTIFIED ADDICTION TECHNICIAN IN THE STATE OF
COLORADO OF KIMBERLY KAY ROGERS, LICENSE NO. LPC.0014830 AND ACA.0007500, FD

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners and Addiction Counselor Examiners (the "Boards") and Kimberly Kay
Rogers ("Respondent"), as follows:

- 1) The Boards have jurisdiction over the person of Respondent and the
subject matter of this Stipulation and Final Agency Order ("Order").
- 2) Respondent was licensed to practice as a licensed professional counselor in the
state of Colorado on August 8, 2018.
- 3) Respondent was licensed to practice as a certified addiction technician in the
state of Colorado on February 15, 2017.
- 4) This Order is a full and final resolution of case numbers 2020-613 and 2020-610.
This Order does not resolve any other cases, complaints, or matters, known or unknown to
the Board or Respondent, as of the effective date of this Order.
- 5) Based on its review of case numbers 2020-613 and 2020-610, in 2020,
Respondent pled guilty to a felony for driving under the influence ("DUI").
- 6) Respondent agrees that if the allegations were proven by the Board at hearing,
Respondent would be found to have violated section 12-245-224(1)(a), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed,
registered, or certified under this article 245 violates this article 245 if he or she:

(a) Has been convicted of or pled guilty or nolo contendere to a felony or to any
crime related to the person's practice, or received a deferred sentence to a felony
charge. A certified copy of the judgment of a court of competent jurisdiction of
the conviction or plea is conclusive evidence of the conviction or plea. In
considering the disciplinary action, each board is governed by sections 12-20-

202(5) and 24-5-101.

PROBATION

7) Respondent's licenses to practice as a licensed professional counselor and certified addiction technician in the state of Colorado are hereby placed on probation for a period of eighteen (18) months commencing from the date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. Respondent understands and agrees that a failure to meet any of the terms of probation may result in further disciplinary action against her license.

8) The period of probation is tolled during any time Respondent is not practicing as a licensed professional counselor and certified addiction technician in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9) Credit towards the period of probation will be given only for those periods of time during which Respondent is practicing as a licensed professional counselor and certified addiction technician in the State of Colorado, is being monitored unless specifically released from that obligation by the Board, and is in full compliance with all terms of this Order.

10) Respondent shall report to the Board if she discontinues the practice of licensed professional counseling or as a certified addiction technician. Respondent shall notify the Board upon resuming the practice of licensed professional counseling or as a certified addiction technician.

PSYCHOTHERAPY

11) During the period of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). Respondent shall submit, in writing, three (3) proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

12) Respondent and therapist shall enter into a written contract for psychotherapy within forty (40) days of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until the written contract for therapy monitoring is executed.

13) The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but not less frequently than once each month.
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for her clients and must send a copy of each report to Respondent. The therapist shall submit their first report by the fifth day of the month following the first month of psychotherapy. The therapist shall submit subsequent reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that they have received and read a copy of this Order, the Board files, and the therapy evaluator's report, and must state that they understand and agree to the duties and responsibilities they are undertaking as Respondent's therapist.

14) If, at any time, the therapist is of the opinion that Respondent is practicing licensed clinical social work in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within forty-eight (48) hours of forming their opinion. The therapist shall send a copy of such report to Respondent when they send the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of licensed clinical social work.

15) Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than sixty days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of addiction counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report it to the Board in accordance with this Order.

16) Respondent cannot practice as a licensed professional counselor or certified addiction technician during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

17) The eighteen month period is tolled during any time that Respondent is not practicing in this state.

PRACTICE MONITOR

18) During the period of probation, Respondent shall undergo practice monitoring with a monitor approved by the Board ("Practice Monitor"). Respondent shall submit, in writing, three (3) proposed Practice Monitors for the Board's approval. Respondent shall include a program-approved Practice Monitor application from each potential Practice Monitor, with attached curriculum vita or resume. The Practice Monitor shall meet the following criteria:

- a. It is recommended that the Practice Monitor have a minimum of five (5) years of experience and has not been subject to professional discipline;
- b. The Practice Monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

19) If Respondent does not have a practice monitor, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

20) Respondent and the practice monitor shall enter into a written contract for monitoring within 40 days of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until the written contract for practice monitoring is executed. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

21) The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

22) Should the Boards determine from the practice monitor's evaluation that Respondent cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Boards determine, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards find Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Boards that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

23) The practice monitoring shall consist of individual, in-person (face-to-face) sessions or via telemonitoring sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month. Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to

determine whether Respondent is practicing addiction counseling and professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

24) The practice monitor shall submit a written report to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first twelve (12) reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Boards, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

25) If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Boards' concerns. The Boards will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

26) If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice as a certified addiction technician and licensed professional counselor.

27) Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards' judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

28) Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Boards in accordance with this Order.

TERMS AND CONDITIONS

29) Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30) This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

31) This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

32) This Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

33) This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

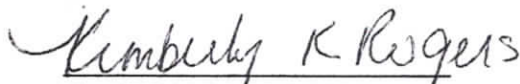
34) This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

35) This Order shall be admissible as evidence at any hearing held before the Board.

36) This Order shall be a public record in the custody of the Board.

**AGREED TO AND ACCEPTED
BY:**

RESPONDENT



KIMBERLY KAY ROGERS
License Nos. LPC.0014830
ACA.0007500

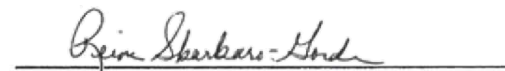
APPROVED AS TO FORM:



SUZANNE ROGERS
Attorney for Respondent

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS
AND ADDICTION COUNSELOR EXAMINERS


REINA BARBARO-GORDON
Program Director

Effective this 26th day of May, 2023.